

EMPLOYMENT AGREEMENT

This Employment Agreement ("Agreement") is entered into on January 1, 2024, between:

EMPLOYER: TechCorp Solutions Inc., a Delaware corporation

Address: 123 Tech Street, San Francisco, CA 94105

EMPLOYEE: John Doe

Address: 456 Employee Lane, San Francisco, CA 94102

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1. POSITION AND DUTIES

1.1 Position: The Employee is hired as a Senior Software Engineer in the Engineering Department.

1.2 Duties: The Employee shall perform the following duties:

- Design and develop software applications
- Conduct code reviews and provide technical guidance
- Collaborate with cross-functional teams
- Participate in agile development processes
- Mentor junior developers

1.3 Reporting: The Employee shall report directly to the Chief Technology Officer.

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2. COMPENSATION AND BENEFITS

2.1 Base Salary: The Employee shall receive an annual base salary of \$120,000 (One Hundred Twenty Thousand Dollars), payable in bi-weekly installments of \$4,615.38.

2.2 Performance Bonus: The Employee is eligible for an annual performance bonus of up to 15% of base salary, based on individual and company performance metrics.

2.3 Stock Options: The Employee shall receive 5,000 stock options vesting over 4 years with a 1-year cliff.

2.4 Health Benefits:

- Comprehensive health insurance (medical, dental, vision)
- Company pays 80% of premiums
- Coverage begins on the first day of employment

2.5 Retirement: 401(k) plan with company matching up to 5% of salary.

2.6 Other Benefits:

- Life insurance coverage of 2x annual salary
- Disability insurance
- Commuter benefits up to \$300/month
- Professional development budget of \$2,000/year

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3. WORKING HOURS AND LOCATION

3.1 Hours: The Employee shall work 40 hours per week, Monday through Friday, 9:00 AM to 5:00 PM Pacific Time.

3.2 Location: Primary work location is the San Francisco office. Remote work is permitted up to 2 days per week with manager approval.

3.3 Overtime: As an exempt employee, no overtime compensation is provided.

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4. VACATION AND LEAVE

4.1 Annual Vacation: 20 days (160 hours) of paid vacation per year, accruing at 1.67 days per month.

4.2 Sick Leave: 10 days (80 hours) of paid sick leave per year.

4.3 Public Holidays: All federal holidays are paid time off (approximately 10 days per year).

4.4 Parental Leave: 12 weeks of paid parental leave for birth or adoption of a child.

4.5 Bereavement Leave: 5 days of paid leave for immediate family members.

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5. CONFIDENTIALITY AND PROPRIETARY INFORMATION

5.1 Confidential Information: The Employee agrees to maintain strict confidentiality of all proprietary information, including but not limited to:

- Trade secrets
- Business strategies and plans
- Customer lists and data
- Financial information
- Product roadmaps
- Source code and technical documentation

5.2 Duration: Confidentiality obligations continue indefinitely, even after termination of employment.

5.3 Return of Materials: Upon termination, Employee must return all company property and confidential materials.

6. TERMINATION

6.1 Notice Period: Either party may terminate this agreement with 30 days written notice.

6.2 Termination for Cause: The Employer may terminate immediately without notice for:

- Gross misconduct or insubordination
- Breach of confidentiality
- Violation of company policies
- Criminal activity
- Poor performance after written warnings

6.3 Termination without Cause: If the Employer terminates without cause, the Employee shall receive:

- 2 months of severance pay
- Continuation of health benefits for 60 days
- Payout of accrued vacation time

6.4 Resignation: If Employee resigns, they shall receive payout of accrued vacation time only.

7. NON-COMPETE AND NON-SOLICITATION

7.1 Non-Compete: The Employee agrees not to work for direct competitors for a period of 12 months after termination within a 50-mile radius of any company office.

7.2 Non-Solicitation: The Employee agrees not to solicit company employees or customers for 18 months after termination.

7.3 Reasonableness: The parties agree these restrictions are reasonable and necessary to protect legitimate business interests.

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8. INTELLECTUAL PROPERTY

8.1 Work Product: All work product, inventions, discoveries, and intellectual property created during employment shall be the exclusive property of the Employer.

8.2 Assignment: Employee hereby assigns all rights, title, and interest in such work product to the Employer.

8.3 Disclosure: Employee must promptly disclose all inventions to the Employer.

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9. DISPUTE RESOLUTION

9.1 Arbitration: Any disputes arising from this Agreement shall be resolved through binding arbitration in accordance with the rules of the American Arbitration Association.

9.2 Location: Arbitration shall take place in San Francisco, California.

9.3 Costs: Each party shall bear their own costs, with arbitrator fees split equally.

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10. GENERAL PROVISIONS

10.1 Governing Law: This Agreement shall be governed by the laws of the State of California.

10.2 Entire Agreement: This Agreement constitutes the entire agreement between the parties and supersedes all prior agreements.

10.3 Amendments: Any amendments must be in writing and signed by both parties.

10.4 Severability: If any provision is found invalid, the remaining provisions shall remain in full force.

10.5 Waiver: Failure to enforce any provision does not constitute a waiver of that provision.

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SIGNATURES

EMPLOYER: TechCorp Solutions Inc.

By: _____

Name: Sarah Johnson

Title: Chief Executive Officer

Date: January 1, 2024

EMPLOYEE:

Signature: _____

Name: John Doe

Date: January 1, 2024

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END OF AGREEMENT